

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JORDAN SOUZA,

Petitioner

VS.

SOPHIA BURLEY,

Respondent

) Case Number: FLD-25-397296

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties Petitioner Jordan Souza (Father) and Respondent Sophia Burley (Mother). There is one minor child subject to this proceeding: Jaxen Souza (DOB: 03/13/22).
- 2) On July 7, 2025, the Juvenile Court issued a “Custody Order – Juvenile – Final Judgment” in which Father was awarded sole legal and sole physical custody of the minor child. Mother was given up to 5 hours of professionally supervised visits twice per week to be monitored by Rally Family Services with a “step-up” plan envisioned by the Court.
- 3) On January 30, 2026, Mother filed a Request for Order seeking a modification of the existing child custody and visitation orders. Mother requests:
 - a. Wednesday/Thursday visits with J.S. from 10:00 a.m. – 8:00 p.m.
 - b. Increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m. plus an additional overnight each month until the parties reach a 50/50 schedule after approximately 3 months as follows: 2-2-5-5 where Mother is the

Wednesday/Thursday parent and Petitioner is the Monday/Tuesday parent, and they alternate weekends.

c. Exchanges to occur at Cameo House with Father responsible for coordinating pick-up and drop-offs of the minor child.

d. Joint legal and joint physical custody.

e. Establishment of a holiday schedule.

4) On March 2, 2026, the Court held a readiness hearing and referred the parties to Family Court Services (FCS) Mediation on March 26, 2026, and set a return hearing on April 30, 2026.

5) Father did not file an opposition to Mother's motion.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) Mother's request for joint legal and joint physical custody is DENIED, at this time.

3) Commencing April 30, 2026, Mother's parenting time with the minor child on Wednesdays and Thursdays shall be from 10:00 a.m. – 8:00 p.m. each week.

4) Commencing June 30, 2026, Mother's parenting time shall increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m.

5) Exchanges shall occur at Cameo House with Father responsible for coordinating pick-up and drop-offs of the minor child.

6) The Court declines to implement a holiday schedule at this time. The parents are encouraged to work cooperatively together to establish a holiday schedule.

7) The parties may modify the parenting plan by mutual written agreement (i.e., email, text, or paper).

8) After December 30, 2026, Mother is encouraged to file a new Request for Order seeking modification of the existing custody orders and additional parenting time. The Court will be interested in learning how the parenting plan and Mother's sobriety are progressing at that time.

9) Counsel for Mother shall prepare the Findings and Order After Hearing.

1 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).